Number 27 *of* 1965

SUCCESSION ACT 1965

REVISED

Updated to 4 May 2020

This Revised Act is an administrative consolidation of the *Succession Act 1965*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Emergency Measures in the Public Interest (Covid-19) Act 2020* (2/2020), enacted 27 March 2020 and all statutory instruments up to and including the *Planning and Development Act 2000 (Subsection (4) of Section 251A) (No. 2) Order 2020* (S.I. No. 165 of 2020), made 8 May 2020, were considered in the preparation of this Revised Act.

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Number 27 *of* 1965.

SUCCESSION ACT 1965

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AN ACT TO REFORM THE LAW RELATING TO SUCCESSION TO THE PROPERTY OF DECEASED PERSONS AND, IN PARTICULAR, THE DEVOLUTION, ADMINISTRATION, TESTAMENTARY DISPOSITION AND DISTRIBUTION ON INTESTACY OF SUCH PROPERTY, AND TO PROVIDE FOR RELATED MATTERS. [22*nd December*, 1965.]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:—

PART I

Preliminary and General

Short title.

1.—This Act may be cited as the Succession Act, 1965.

Commencement.

2.—This Act shall come into operation on such day, not earlier than the 1st day of July, 1966, as the Minister by order appoints.

Interpretation.

3.—(1) In this Act, except where the context otherwise requires—

F1**[**"Act of 2015" means the Children and Family Relationships Act 2015;**]**

"administration", in relation to the estate of a deceased person, means letters of administration, whether with or without a will annexed, and whether granted for special or limited purposes;

"administrator" means a person to whom administration is granted;

F2**[** 'civil partner' has the meaning assigned to it by the Civil Partnership and Certain Rights and Obligations of Cohabitants Act 2010; **]**

"conveyance" includes a mortgage, charge, lease, assent, transfer, disclaimer, release and every other assurance of property by any instrument except a will;

"the court" shall be construed in accordance with section 6;

"estate" shall be construed in accordance with section 14;

"grant" means grant of representation;

"infant" means a person under the age of twenty-one years;

civil partner**]** shall be made without the payment of money provided for in subsection (9) or subject to the payment of such amount as the court considers reasonable.

(*c*) The court may make such further order in relation to the administration of the deceased's estate as may appear to the court to be just and equitable having regard to the provisions of this Act and to all the circumstances.

(*d*) The court shall not make an order under this subsection in relation to a dwelling in any of the cases mentioned in subsection (6), unless it is satisfied that the order would be unlikely to diminish the value of the assets of the deceased, other than the dwelling, or to make it more difficult to dispose of them in due course of administration.

(11) All proceedings in relation to this section shall be heard in chambers.

(12) Where the surviving spouse F21**[**or civil partner**]** is a person of unsound mind, a requirement or consent under this section may, if there is a committee of F22**[**his or her**]** estate, be made or given on behalf of the spouse F21**[**or civil partner**]** by the committee by leave of the court which has appointed the committee or, if there is no committee, be given or made by the High Court or, in a case within the jurisdiction of the Circuit Court, by that Court.

(13) An appropriation to which this section applies shall for the purposes of succession duty be deemed to be a succession derived from the deceased.

[Cf. "dwelling" in 1960 (No. 42) s. 2 (1)]

(14) In this section—

"dwelling" means an estate or interest in a building occupied as a separate dwelling or a part, so occupied, of any building and includes any garden or portion of ground attached to and usually occupied with the dwelling or otherwise required for the amenity or convenience of the dwelling;

"household chattels" means furniture, linen, china, glass, books and other chattels of ordinary household use or ornament and also consumable stores, garden effects and domestic animals, but does not include any chattels used at the death of the deceased for business or professional purposes or money or security for money.

Appointment by personal representatives of trustees of infant's property.

[New]

57.—(1) Where an infant is entitled to any share in the estate of a deceased person and there are no trustees of such share able and willing to act, the personal representatives of the deceased may appoint a trust corporation or any two or more persons (who may include the personal representatives or any of them or a trust corporation) to be trustees of such share for the infant and may execute such assurance or take such other action as may be necessary for vesting the share in the trustee so appointed. In default of appointment the personal representatives shall be trustees for the purposes of this section.

(2) On such appointment the personal representatives, as such, shall be discharged from all further liability in respect of the property vested in the trustees so appointed.

Powers of trustees of infant's property.

[New]

58.—(1) Property vested under section 57 may be retained in its existing condition or state of investment or may be converted into money and invested in any security in which a trustee is authorised by law to invest, with power, at the discretion of the trustees, to change such investments for others so authorised.

(2) F23**[**...**]**

(3) A person who is sole trustee under section 57 shall be entitled to receive capital trust money.

(4) Persons who are trustees under section 57 shall be deemed to be trustees for the purposes of sections 42 and 43 of the Conveyancing Act, 1881.